

I 01778

Book

TOMASHA VILLAGE RESURVEY DECLARATION OF RESTRICTIONS

Lots 195 thru 256,
inclusive, and
Lots 269 thru 276,
inclusive.

Dated
Filed
No.

I 6P1035

Page

A re-plat of lots 195 thru 254 & lots 269 thru 276, Tomasha Village

Whereas, Harry F. Gordanier and Willa H. Gordanier, husband and wife, Thomas H. Shaw and Helen L. Shaw, husband and wife, Len H. Sutherland and Kether Lee Sutherland, husband and wife, the owners of the following described real property, to-wit:

All of Lots 195 to 256, inclusive, and 269 to 276, inclusive, Tomasha Village, a subdivision of land in the City of Independence, Jackson County, Missouri,

For the purpose of securing orderly and uniform improvements of said property, and to the objective that the undersigned, its successors, assigns and future Grantees may be protected and assured that the above described lands shall be used for high class residential purposes, we the undersigned hereby declare that the above described lands are held and shall be conveyed subject to the reservations and covenants hereinafter set forth.

SECTION I USE OF LAND

(A) Lots 195 to 256, inclusive and 269 to 276 inclusive, for one family dwellings

- (1) The above lands, may be improved, used or occupied for private residence, and no flat or apartment house though intended for residential purposes may be erected thereon.
- (2) All improvements designed for occupancy by a single family shall not be more than two stories, except that split-level construction shall be permitted.
- (3) No dwelling or residence shall be located nearer to the front lot lines or side lot lines than as indicated on the plat.
- (4) No trailer, basement, tent, shack, garage, barn or other outbuildings, shall at any time be used as a residence, storage or tool shed, temporarily or permanently, nor shall any residence of temporary character be permitted. No clothes line of a permanent type shall be erected on any lot. No type of trash burner shall be erected and trash burning will not be permitted on any lot.
- (5) No structure shall be moved on said premises from another location, and no dwelling or residence shall be occupied until fully completed, and such dwelling or residence must be fully completed within six months after the first earth excavation is started. All yards, front and side, must be either sodded or sprigged within the above time.
- (6) No animals, livestock, or poultry of any kind shall be raised, bred, or kept on any lot, except that dogs, cats, or other household pets may be kept, provided that not more than (2) dogs or two (2) cats or two (2) other household pets shall be kept on any residence lot.
- (7) No school buses, tractors, trucks, boats, or trailers or campers shall be parked or stored in the open on the lot or at the curb for more than (4) four hours at any one time.

(8) No noxious or offensive trade or activity shall be carried on upon any lot, nor shall anything be done thereon which may be or become annoyance or nuisance to the neighborhood.

T 6P1036

SECTION II APPROVAL OF PLANS AND SPECIFICATIONS
OF IMPROVEMENTS PERMITTED.

(9) All plans and specifications for the construction of dwelling or residence shall be submitted to Harry F. Gordanier or Thomas H. Shaw or Lon M. Sutherland for their approval so long as either of them shall own any lot in this subdivision.

(10) No fencing shall be permitted on any lot unless the same is yard fencing and approval for all fencing must be obtained in the manner and method as set out in Paragraph 9, but no fencing to extend nearer to front street than the rear line of dwelling or, to the side than the side line of property or to the side line of dwelling on a corner lot of that particular residence except decorative railing along walkways which must be submitted for approval along with plans and specifications.

(11) All plans, specifications and location for the construction of a swimming pool must be submitted as set forth in Paragraph 9.

(12) All improvements shall be connected with the sanitary sewer system, which is now or shall be, constructed to serve the above premises. No other sanitary provision, septic tank or other device for sewage disposal shall be installed or permitted to remain on any lot.

(13) No residence of one story shall be erected having a ground floor area of less than 1600 square feet, which shall be exclusive of porches, garages and breezeways. No split level residence shall be erected having a living area of less than 1600 square feet on the two main levels. No residence of two stories, or one and one-half stories, shall be erected having less than 1200 square feet on the ground level. No residence having the appearance from the front of a two story residence, including the foundation, with the principal living area on the second floor, shall have less than 1600 square feet on the second floor or principal living area. Any dwelling with basement garage must have 1700 square feet on main living area. No residence shall have less than two (2) garages, which may be attached or built-in garages. All driveways shall be poured concrete or asphalt, and shall extend to the curb line of the street upon which the premises front, or to the property line of the side street. All roofing shall be wood shingle, any other material due to pitch of roof must be submitted for approval as set out in Paragraph 9.

(14) The developers may maintain a small real estate office, from which to sell lots and homes in the development, until all lots have been sold.

(15) No sale of said lots shall be consummated without giving at least fifteen (15) days' written notice to PROPRIETORS and the owners of the two lots adjoining said lot on the sides, of the terms thereof; and any of them shall have the right to buy said lot on such terms within fifteen (15) days, by giving notice to the sellers of their intentions, providing they complete the purchase with the fifteen (15) days after title papers have been made available and on the same terms as provided for the proposed sale of said lots. Such notice shall be personally served if service can be made on the subdivision; if any person entitled to service cannot be found on the subdivision, notice shall be mailed to such person at his last known address. Affidavit

of the person making service shall be sufficient evidence thereof to protect a purchaser. State laws govern paragraph fifteen. No notice shall be required to be given PROPRIETORS as herein provided after the PROPRIETORS have sold the last lot owned by them in the subdivision, but such notice shall only be given to the adjoining lot owners.

SECTION III SIGNS, BILLBOARDS AND
MISCELLANEOUS PROVISIONS

(16) The construction or placing of signs, billboards or advertising structures of any kind is prohibited, except that one sign advertising the rental or sale of property is permitted, provided it does not exceed five (5) square feet in size, and further that the developers may maintain a large sign or signs pertaining to said development prior to completion.

(17) No tanks for the storage of oil or other fluids or out buildings of any kind may be maintained on any portion of the premises above the surface of the ground.

(18) No trash, ashes or other refuse shall be thrown or dumped upon any undeveloped portions of said lands.

SECTION IV DURATION AND ENFORCEMENT

(19) These restrictions and covenants are to run with the land and shall be binding on all parties and all persons claiming under them until January 1, 1988, at which time said covenants shall be automatically extended for successive periods of ten (10) years unless the then owners of a majority of the lots in the said subdivision shall, before the expiration of said original term, or any extension thereof, by an instrument executed, acknowledged and recorded in the office of the Recorder of Deeds, change or modify the same in whole or in part.

(20) Each of the restrictions and covenants herein set forth shall run with the land and bind the present owner, its successors and assigns and all parties claiming by, through or under them shall be taken to hold, agree and covenant with the owner of said tract, to conform to and observe said restrictions and covenants. The owner or owners of any portion of the above lands shall have the right to sue for and obtain an injunction, prohibitive or mandatory, to prevent the breach of or to enforce the observance of the restrictions and covenants above set forth, in addition to the ordinary legal action for damages; and the failure of the owners of said premises hereby restricted to enforce any of the restrictions and covenants herein set forth shall not waive such right to do so at any time thereafter.

(21) Invalidity of any one or more of the provisions, reservations, restrictions and covenants herein contained, and any amendments hereto, by court order or judgment, shall in no wise affect any of the other provisions, reservations, restrictions and covenants herein.

(22) Harry F. Gordanier and Willa H. Gordanier, husband and wife, Thomas H. Shaw and Helen L. Shaw, husband and wife, Lon M. Sutherland and Esther Lee Sutherland, husband and wife, reserve the right to permit the erection of a residence on any of the lots in said addition two feet nearer to any street line on which said lot fronts, by executing and recording a proper instrument of writing, changing the front building set back line.

(23) No member of the building committee, nor any of the signers of this instrument, either individually or jointly, shall be subject to any action for damages nor liable for damages by refusal to act or not to act on by acting, and all land owners by taking title do hereby release and discharge each such member or person from all liability.

I 6P1038

IN WITNESS WHEREOF, the parties hereto have executed this instrument
this 15th day of October, 1967.

Harry F. Gordanier
Harry F. Gordanier

Willa H. Gordanier
WILLA H. GORDANIER

Thomas H. Shaw
THOMAS H. SHAW

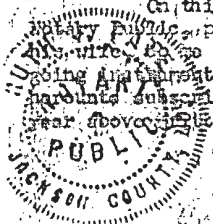
Helen L. Shaw
HELEN L. SHAW

Lon M. Sutherland
LON M. SUTHERLAND

Esther Lee Sutherland
ESTHER LEE SUTHERLAND

STATE OF MISSOURI)
)SS
COUNTY OF JACKSON)

On this 15th day of October, 1967, before me, the undersigned, a
Notary Public, personally appeared Harry F. Gordanier and Willa H. Gordanier,
his wife, to me personally known, and acknowledged that they executed the fore-
going instrument as their free act and deed. In testimony whereof, I have
hereunto subscribed my name and affixed the seal of my office on the day and
year above written.



Ruth J. Pate
Notary Public

My Commission expires My Commission Expires Sept. 29, 1971

STATE OF MISSOURI)
COUNTY OF JACKSON)SS

I 6P1039

On this 26th day of October, 1967, before me, the undersigned a Notary Public, personally appeared Thomas H. Shaw and Helen L. Shaw, his wife, to me known to be the persons described in and who executed the foregoing instrument, and acknowledged that they executed the same as their free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal of my office in Raytown, Missouri, the day and year last above written.



Ruth J. Pato
NOTARY PUBLIC, within and for said
County and State

My Commission expires _____

My Commission Expires Sept. 29, 1971

STATE OF MISSOURI)
COUNTY OF JACKSON)SS

On this 25th day of October, 1967, before me, the undersigned, a Notary Public, personally appeared Lon H. Sutherland and Esther Lee Sutherland, his wife, to me known to be the persons described in and who executed the foregoing instrument and acknowledged that they executed the same as their free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at my office in Raytown, Missouri, the day and year last above written.



Ruth J. Pato
Notary Public, within and for said County
and State

My Commission expires _____

My Commission Expires Sept. 29, 1971

I 6P1010

LAND TITLE

I 01778

STATE OF MISSOURI } ss.
JACKSON COUNTY }
RECEIVED FOR RECORD

NOV 3 AM 10 26 '5

BILL W. AUSTIN

I 6P1035

LAND TITLE

850

STATE OF MISSOURI } ss.
COUNTY OF JACKSON }

IN RECORDER'S OFFICE

I, BILL W. AUSTIN, Recorder of Deeds within and for the County aforesaid, do hereby certify that the foregoing instrument of writing was on the 3 day of Nov A. D. 1947, at 10 o'clock 26.5 minutes AM, duly filed for record in this office, and with the certificate of acknowledgement thereon endorsed, is recorded in the records of this office, in Book 76 at page 1035.

IN WITNESS WHEREOF, I hereunto set my hand and affix the seal of said office, at Independence, Missouri the day and year last aforesaid.

BILL W. AUSTIN, Recorder

By J. McManamy Deputy

97 - 1 81331

I3117P 240

1914 OCT 29 1967
COUNTY OF JACKSON MO
CERTIFIED INSTRUMENT

1997 DEC 29 11:46
I3117P 240

RECORDED
DIRECTOR OF RECORDS

200
300
500
1100
120.00
Ready

AMENDMENT
TO THE
DECLARATION OF RESTRICTIONS
OF TOMASHA VILLAGE RESURVEY
LOTS 195 THRU 256
LOTS 269 THRU 276

(A REPLAT OF LOTS 195 THRU 254, AND LOTS 269 THRU 276)

This is an Amendment to that certain Declaration of Restrictions of Tomasha Village (herein "Declaration") affecting that certain tract of real estate described as:

All of Lots 195 to 256, inclusive, and 269 to 276, inclusive, TOMASHA VILLAGE RESURVEY, a subdivision of land in the City of Independence, Jackson County, Missouri,

executed by all of the then owners of the aforesaid parcel of real estate under date of October 25, 1967, which Declaration was thereafter recorded November 3, 1967, as Document Number I-01778 in Book I-6 beginning at Page 1035 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence.

WHEREAS, the Declaration in Section IV, paragraph (19), provides with respect to modifying or changing the said Declaration that

"[T]hese restrictions and covenants are to run with the land and shall be binding on all parties and all persons claiming under them until January 1, 1988, at which time said covenants shall be automatically extended for successive periods of ten (10) years unless the then owners of a majority of the lots in the said subdivision shall, before the expiration of said original term, or any extension thereof, by an instrument executed, acknowledged and recorded in the office of the Recorder of Deeds, change or modify the same in whole or in part"; and

WHEREAS, the undersigned represent the current owners of a majority of the lots in the said subdivision; and

WHEREAS, the undersigned deem it necessary and desirable to change and modify the Declaration in part as hereinafter set forth, and hereby desire that this change and modification to the Declaration be executed, acknowledged, and recorded in the office of the Recorder of Deeds, and further desire that the Declaration, as changed and modified hereby, shall continue to run with the land; and

WHEREAS, the undersigned desire and acknowledge that all terms of the Declaration not hereby changed or modified shall remain binding on the real estate.

NOW THEREFORE, by virtue of the amendment authority aforesaid, the undersigned current owners of a majority of the lots in the said subdivision, herein change and modify the Declaration in the following respects, to-wit:

I

Section I, Use Of Land, Paragraph (7) is hereby changed and modified to read as follows:

(7) No school buses, tractors, commercial trucks (not including personal pickup trucks or vans as defined by the State of Missouri), boats, recreational vehicles, campers, or trailers shall be kept, parked, maintained, or stored in the open on the lot or at the curb for more than twenty-four (24) hours at any one time, it being the intention of this paragraph that the permanent parking and storage of any of the vehicles described herein shall be done either, at a location off-site of the real estate subject to the Declaration, or within the enclosed garages with closed doors which form a part of the residences.

II

Section II, Approval of Plans and Specifications of Improvements Permitted, Paragraph (9) is hereby changed and modified to read as follows:

(9) All plans and specifications for the construction of a dwelling or residence, building, wall, structure, improvement, or addition shall be submitted to the Architectural Review Committee of The Tomasha Homes Association.

III

Section II, Approval of Plans and Specifications of Improvements Permitted, Paragraph (13) is hereby changed and modified to read as follows:

(13) No residence of one story shall be erected having a ground floor area of less than 1600 square feet, which shall be exclusive of porches, garages and breezeways. No split level residence shall be erected having a living area of less than 1600 square feet on the two main levels. No residence of two stories or one and one-half stories, shall be erected having less than 1200 square feet on the ground level. No residence having the appearance from the front, of a two story residence, including the foundation, with the

principal living area on the second floor, shall have less than 1600 square feet on the second floor or principal living area. Any dwelling with basement garage must have 1700 square feet on the main living area. No residence shall have less than two (2) garages, which may be attached or built in garages. All driveways shall be poured concrete, asphalt, brick, cast concrete paving blocks, or coated concrete, and shall be subject to the approval of the Architectural Review Committee of the Tomasha Homes Association, and shall extend to the curb line of the street upon which the premises front, or to the property line of the side street. All roofing shall be wood shingle, genuine slate, natural clay tile, natural concrete tile, or composition weathered gray roof material, and shall be subject to the approval of the Architectural Review Committee of the Tomasha Homes Association.

IV

Section II, Approval of Plans and Specifications of Improvements Permitted, Paragraph (15) is hereby deleted in its entirety.

V

Section II, Approval of Plans and Specifications of Improvements Permitted, the following are inserted and shall become new Paragraphs (15) and (16):

(15) No radio or television transmitting or receiving antenna or dish larger than a cube 2 feet by 2 feet by 2 feet (2' x 2' x 2') may be erected maintained outside of any residence on any lot.

(16) No solar apparatus may be maintained, erected, or kept outside of any residence on any lot.

VI

Section III, Signs, Billboards, and Miscellaneous Provisions, Paragraph (16) as originally numbered in the Declaration, shall be re-numbered as Paragraph (17) and is hereby changed and modified to read as follows:

(17) The construction or placing of signs, billboards or advertising structures of any kind is prohibited, except that one sign advertising the rental or sale of property is permitted, provided it does not exceed five (5) square feet in size, and except that political signs not exceeding five (5) square feet in size, shall be allowed within seven (7) days prior to an election and for one (1) day after an election.

VII

Section III, Signs, Billboards, and Miscellaneous Provisions, Paragraphs (17) and (18) as originally numbered in the Declaration, shall be re-numbered as Paragraphs (18) and (19) respectively, however, with no change or modification in the language or terms thereof.

VIII

Section IV, Duration and Enforcement, Paragraph (19) as originally numbered in the Declaration, shall be re-numbered as Paragraph (20) and is hereby changed and modified to read as follows:

(20) These restrictions and covenants are to run with the land and shall be binding on all parties and all persons claiming under them until January 1, 1988, at which time said covenants shall be automatically extended for successive periods of ten (10) years unless the then owners of the majority of the lots in the said subdivision shall, before the expiration of said original term, or any extension thereof, by an instrument executed, acknowledged and recorded in the office of the Recorder of Deeds, change or modify the same in whole or in part, provided however, that these restrictions and covenants may be amended, changed, altered, or modified at any time by the then owners of at least sixty six and two-thirds percent ($66 \frac{2}{3}\%$) of the lots in the said subdivision, by an instrument executed, acknowledged and recorded in the office of the Recorder of Deeds.

IX

Section IV, Duration and Enforcement, Paragraphs (20) and (21) as originally numbered in the Declaration, shall be re-numbered as Paragraphs (21) and (22) respectively, however, with no change or modification in the language or terms thereof.

X

Section IV, Duration and Enforcement, Paragraph (22) as originally numbered in the Declaration is hereby deleted in its entirety.

XI

In all other respects, the covenants and restrictions contained within the Declaration as same exists as of this date, remain unchanged and unmodified.

Lena Polito
LENA POLITO

Signature and Printed Name

249

Tomasha Village Lot(s) Number Owned

Date *11-9-97*

Sharon D. Sefton
Sharon D Sefton

Signature and Printed Name

274

Tomasha Village Lot(s) Number Owned

Nov 9, 1997

Date

Linda L Schulte
LINDA L SCHULTE

Signature and Printed Name

235

Tomasha Village Lot(s) Number Owned

11-09-97

Date

Sharon F. Franciske
Sharon F. Franciske

Signature and Printed Name

228

Tomasha Village Lot(s) Number Owned

11-9-97

Date

Vicky Dowland
VICKI DOWLAND

Signature and Printed Name

11/9/97 # 236

Tomasha Village Lot(s) Number Owned

Date

Jerry Boone **JERRY BOONE**

Signature and Printed Name

246

Tomasha Village Lot(s) Number Owned

11-9-97

Date

13117P 244

N/A

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

N/A

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

James R Schurz
James R Schurz

Signature and Printed Name

235

Tomasha Village Lot(s) Number Owned

11-9-97

Date

Larry O Franciske
Larry O Franciske

Signature and Printed Name

228

Tomasha Village Lot(s) Number Owned

11-9-97

Date

Steven F. Dowland
STEVEN F. DOWLAND

Signature and Printed Name

236

Tomasha Village Lot(s) Number Owned

12-21-97

Date

Alice Boone **Alice Boone**

Signature and Printed Name

246

Tomasha Village Lot(s) Number Owned

11-9-97

Date

I3117P 245

[Signature] A. HESHAN SHINDIN

Signature and Printed Name
222

Tomasha Village Lot(s) Number Owned
11-05-97

Date

[Signature]

Signature and Printed Name
231

Tomasha Village Lot(s) Number Owned
11/5/97

Date

RICHARD W. JOHANNES

[Signature]

Signature and Printed Name
232

Tomasha Village Lot(s) Number Owned
11-5-97

Date

[Signature]

Signature and Printed Name
Lot 271

Tomasha Village Lot(s) Number Owned
11-5-97

Date

[Signature]

Signature and Printed Name

Lot 206 - 5 feet of Lot 207

Tomasha Village Lot(s) Number Owned
11-5-97

Date

LOWELL D. BREW

Signature and Printed Name
229

Tomasha Village Lot(s) Number Owned
November 5 1997

Date

[Signature] Donna H. Lovett-Salmon

Signature and Printed Name
222

Tomasha Village Lot(s) Number Owned
11-5-97

Date

FREDERICK J. RAPP

Signature and Printed Name
231

Tomasha Village Lot(s) Number Owned
11/5/97

Date

ROBERT I. WHALEN

Signature and Printed Name
Lot 232

Tomasha Village Lot(s) Number Owned
11-5-97

Date

SUE R. SHELTON

Signature and Printed Name
Lot 271

Tomasha Village Lot(s) Number Owned
11-5-97

Date

N/A

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

LUKE A. BREW

Signature and Printed Name
229

Tomasha Village Lot(s) Number Owned
November 9, 1997

Date

I3117P 246

Donato E. Elliott

Signature and Printed Name

Donato E. Elliott

Tomasha Village Lot(s) Number Owned

252

Date 11-25-97

Sandra M. Lowe

Signature and Printed Name

203

Tomasha Village Lot(s) Number Owned

11-25-97

Date

Thomas L. Lowe

Signature and Printed Name

Lot 245

Tomasha Village Lot(s) Number Owned

11-25-97

Date

TERRI J. VICKS

Signature and Printed Name

230

Tomasha Village Lot(s) Number Owned

11-25-97

Date

Bob R. Howard

Signature and Printed Name

221

Tomasha Village Lot(s) Number Owned

11-25-97

Date

PAULINE M. MYERS

Signature and Printed Name

248

Tomasha Village Lot(s) Number Owned

12-10-97

Date

Christie Elliott

Signature and Printed Name

Christie Elliott

Tomasha Village Lot(s) Number Owned

252

Date 11-25-97

JAMES W. LOVE

Signature and Printed Name

203

Tomasha Village Lot(s) Number Owned

11-25-97

Date

Nancy J. Lauber

Signature and Printed Name

Lot 245

Tomasha Village Lot(s) Number Owned

11-25-97

Date

KEN S. VICKS

Signature and Printed Name

230

Tomasha Village Lot(s) Number Owned

11-25-97

Date

Janet A. Howard / Jane A. Howard

Signature and Printed Name

221

Tomasha Village Lot(s) Number Owned

11-25-97

Date

N

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

N

Date

JAYLE CROUCH
Jayle Crouch
Signature and Printed Name
214
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Marylee Scholer
Marylee Scholer
Signature and Printed Name
250
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Mae Linn
MAE LINN
Signature and Printed Name
225
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Rena Jackson
Rena Jackson
Signature and Printed Name
198
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Thomas W. Johnson
Thomas W. Johnson
Signature and Printed Name
205
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Albert P. Hermans
ALBERT P. HERMANS
Signature and Printed Name
269
Tomasha Village Lot(s) Number Owned
11/25/97
Date

GERALDINE R CROUCH
Geraldine R. Crouch
Signature and Printed Name
214
Tomasha Village Lot(s) Number Owned
11-25-97
Date
N/A
Signature and Printed Name
Tomasha Village Lot(s) Number Owned
Date
Clarence A. Linn
CLARENCE A. LINN
Signature and Printed Name
225
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Walter R. Jackson
Walter Jackson
Signature and Printed Name
198
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Genevieve Johnson
Genevieve J. Johnson
Signature and Printed Name
205
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Sandra Thoma Hermans
Sandra Thoma-Hermans
Signature and Printed Name
269
Tomasha Village Lot(s) Number Owned
11/25/97
Date

MARY C. SHADICH

Mary C. Shadich

Signature and Printed Name

251

Tomasha Village Lot(s) Number Owned

11-23-97

Date

Donna Poye Donna Poye

Signature and Printed Name

244

Tomasha Village Lot(s) Number Owned

11-23-97

Date

Sue Russell Sue Russell

Signature and Printed Name

216

Tomasha Village Lot(s) Number Owned

11-23-97

Date

Dot's Towsley Dot's Towsley

Signature and Printed Name

234

Tomasha Village Lot(s) Number Owned

11/23/97

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

N.A.

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

11-23-97

Date

William L. Shadich 13117P 248

Signature and Printed Name

251

Tomasha Village Lot(s) Number Owned

11-23-97

Date

W. Kirk Beye W. KIRK BEYE

Signature and Printed Name

244

Tomasha Village Lot(s) Number Owned

11-23-97

Date

EDWIN A. RUSSELL Edwin A. Russell

Signature and Printed Name

216

Tomasha Village Lot(s) Number Owned

11/23/97

Date

Pershing Towsley Pershing Towsley

Signature and Printed Name

234

Tomasha Village Lot(s) Number Owned

11/23/97

Date

James P. Howard
for Walter D. Howard
James P. Howard D.P.O.A.

Signature and Printed Name

Lot # 208

Tomasha Village Lot(s) Number Owned

11/23/97

Date

Denise Young Denise Young

Signature and Printed Name

273

Tomasha Village Lot(s) Number Owned

11/23/97

Date

13117P 249

Michelle Warren
Signature and Printed Name
256

Tomasha Village Lot(s) Number Owned
12-10-97

Date
H. KENT SIMCOCK
Signature and Printed Name
211

Tomasha Village Lot(s) Number Owned
12-10-97

Date
Joseph S. Gall
Signature and Printed Name
240 & 241

Tomasha Village Lot(s) Number Owned
12/10/97

Date
John Kistler

Signature and Printed Name
209

Tomasha Village Lot(s) Number Owned
12-14-97

Date
Cynthia Howell
Signature and Printed Name
220

Tomasha Village Lot(s) Number Owned
12-14-97

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

Barbara Perrino
Signature and Printed Name
256

Tomasha Village Lot(s) Number Owned
12-10-97

Date
Barbara Ann Simcocksy
Signature and Printed Name
211

Tomasha Village Lot(s) Number Owned
12/10/97

Date

Ann V. Gall
Signature and Printed Name
240 & 241

Tomasha Village Lot(s) Number Owned
12/10/97

Date
Ann Kistler
Signature and Printed Name
209

Tomasha Village Lot(s) Number Owned
12-14-97

Date
Virginia Ann Howell
Signature and Printed Name
220

Tomasha Village Lot(s) Number Owned
12-14-97

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date



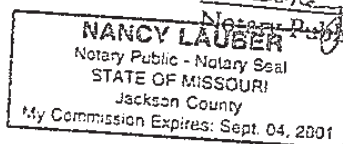
STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

12117P 251

On this 14th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared John & Ann Keller, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 14th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared Evelyn & Kim, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

NA
Notary Public

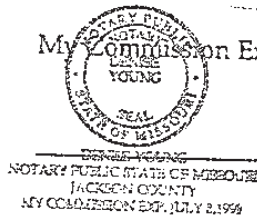
STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Rebecca & Walter Tucker, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
 Notary Public (198)

My Commission Expires:



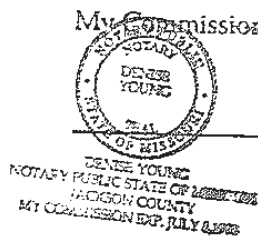
STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Thomas W. Johnson & Geneva Johnson, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
 Notary Public (205)

My Commission Expires:



STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared ALBERT & SANDRA HERMANS, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
 Notary Public

269



NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPI. JULY 2, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared DONALD E. ELLIOTT, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
 Notary Public

252



NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPI. JULY 2, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Eva Mae & Clarence Linn, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public (225)

My Commission Expires:



DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 9, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Christie E. Elliott, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public (252)

My Commission Expires:



DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 9, 1998

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared SANITA & JAMES LOWE to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Notary Public *Young* 203



~~DECEASED~~
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 3, 1969

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared THOMAS L. & NANCY LAUBER, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

DENISE Young
Notary Public 945



DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 2, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Terri & Ken Jinks, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public (230)

My Commission Expires:



DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPIRES JULY 8, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 10th day of Dec., 1997, before me, the undersigned, a Notary Public, personally appeared Phillip J. Farrino, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public (256)

My Commission Expires:



DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPIRES JULY 8, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared Don & Susan Howard, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 2, 1998

Denise Young
 Notary Public

(221)

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 10th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared PAULINE MYERS, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 2, 1998

Denise Young
 Notary Public

(246)

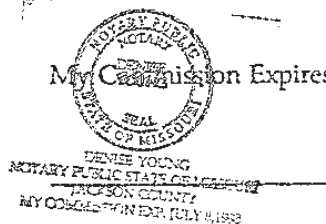
STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25 day of Nov, 1997, before me, the undersigned, a Notary Public, personally appeared Jack & Geraldine Couch, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
Notary Public

My Commission Expires:

[illegible]

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25 day of Nov, 1997, before me, the undersigned, a Notary Public, personally appeared Marlyne Schaefer, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

D. Denise Young
Notary Public

City Commission Expires:

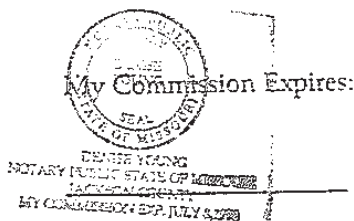


STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 23rd day of Nov, 1997, before me, the undersigned, a Notary Public, personally appeared MAEY & WILLIAM SHULICK, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
Notary Public

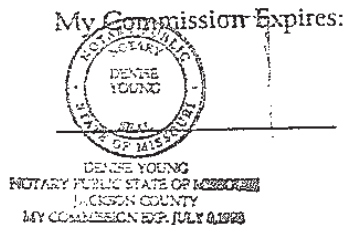


STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 23rd day of November, 1997, before me, the undersigned, a Notary Public, personally appeared DAVID W. Kirk Bive, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
Notary Public



STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 23RD day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Suz & Edwin Russell, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Notary Public



~~THOMAS YOUNG~~
 CLERK JURY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPI. JULY 2, 1933

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 23rd day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared DORIS & PERSHING TOWSEY, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Notary Public



DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 2, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 23RD day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared JAMES R. HOLLARD, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public



My Commission Expires:
 DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPIRES JULY 3, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 23RD day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared Adam & Denise Young, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Wilma J. Henks
 Notary Public

My Commission Expires:

WILMA J. HENKS
 Notary Public - Notary Seal
 STATE OF MISSOURI
 Jackson County
 My Commission Expires March 7, 1998

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

13117P 262

On this 5TH day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared WILBUR CAPTWELL, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 2, 1998

Denise Young
Notary Public

200

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 5TH day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared GLENN & KATHRYN PETERS, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 2, 1998

Denise Young
Notary Public

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I3117P 263

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 6th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Janice A. Sartwell, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Linda Gail Allen
Notary Public

My Commission Expires:

01/19/99

LINDA GAIL ALLEN
Notary Public - Notary Seal
STATE OF MISSOURI
Jackson County
My Commission Expires Jan. 19, 1999

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 7th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Linda Cassiker, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Julie A. England
Notary Public

My Commission Expires: 1-3-99

JULIE A. ENGLAND
Notary Public - Notary Seal
STATE OF MISSOURI
Jackson County
My Commission Expires Jan. 03, 1999

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

13117P 264

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Leopoldo P. P. P., to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

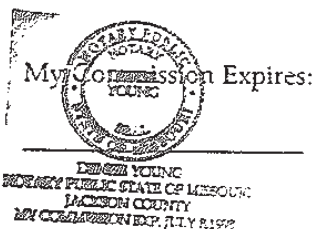


Denise Young
Notary Public

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Sheron D. SoPlay, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



Denise Young
Notary Public

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Judith & James P. Schultz, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

Notary Public

DENVER TOURS
 PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 NEW ORLEANS, LA. 70112

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Sharon E. Lamy D. Franciskuto, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires: 

HERNIE YOUNG
REPRESENTATIVE STATE OF ~~TENNESSEE~~
JACKSON COUNTY
MY COMMISSION EXP. ~~APRIL 1, 1978~~

Notary Public

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 9 day of November, 1992, before me, the undersigned, a Notary Public, personally appeared Vicky Dowland, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DRIVER YOUNG
NORTH PUBLIC STATE OF MICHIGAN
LANSING COUNTY
BY COMMISSIONER EXP. JULY 2, 1922

Notary Public

STATE OF MISSOURI)
COUNTY OF JACKSON) ss

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Terry Boone, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
Notary Public

My Commission Expires: _____



DENISE YOUNG
 SECRETARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPIRES 11/11/2014

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 9 day of November, 1991, before me, the undersigned, a Notary Public, personally appeared ALICE BLAKE, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public



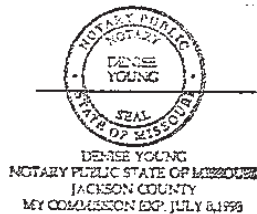
STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 23rd day of Nov., 1997, before me, the undersigned, a Notary Public, personally appeared WILLIE HOWLER, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public

My Commission Expires:



STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 5th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared LAWELL & LAURA BRENTON, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Comm. expires
NOTARY PUBLIC
NOTARY
JOHN C. YOUNG
SEAL
STATE OF MISSOURI

My Commission Expires:

DEAN YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXPIRES JULY 8, 1984

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

K. Denise Young
Notary Public

Notary Public

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On this 5th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared DONALD & MARCIA RUSSELL, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires: _____

DEAN YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 8, 1993

Kenise Young
Notary Public

Notary Public

(270



STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 5th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared HASSAN & CONNA SAHIDIN, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



Denise Young
 Notary Public, State of Missouri
 Jackson County
 My Commission Exp. July 8, 1998

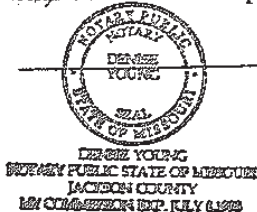
Denise Young
 Notary Public (232)

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 5th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared RICHARD JOHANNES & ROBERT WHALEN, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



Denise Young
 Notary Public (232)

13117P 271

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 4th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Joe + Beverly Kuzniakowski, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires: 1-3-99

Julie A England
 Notary Public

Notary Public - Notary Seal
 STATE OF MISSOURI
 Jackson County

My Commission Expires Jan. 03, 1999

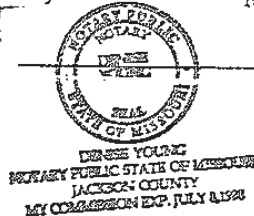
STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 5th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared FRED & SHARON RAMP, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

Dennis Young
 Notary Public



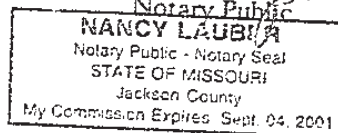
I3117P 272

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 14th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared Justin & Stephanie Howell, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

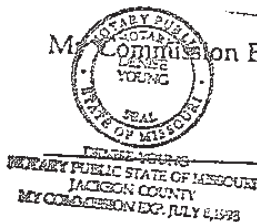


STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 21st day of December, 1997, before me, the undersigned, a Notary Public, personally appeared Steven Dowd, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



Denise Young
Notary Public (236)

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 23rd day of DECEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared CHERYL GRINER, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public



NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPI. JULY 8, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 23rd day of DECEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared RUTH ANN SIMCASKY, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public



NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPI. JULY 8, 1998

WILBUR K SARTWELL

Wilbur K Sartwell
Signature and Printed Name

200
Tomasha Village Lot(s) Number Owned

Date

Chenn D Peters
Signature and Printed Name

215
Tomasha Village Lot(s) Number Owned

Date

Donald M. Russell
Signature and Printed Name

270
Tomasha Village Lot(s) Number Owned

Date

Janice Sartwell Janice Sartwell
Signature and Printed Name

200
Tomasha Village Lot(s) Number Owned

Date 11/6/97

Linda Carriger LINDA CARRIGER
Signature and Printed Name

223
Tomasha Village Lot(s) Number Owned

Date

Willie Holliger (NANN)
Signature and Printed Name

210
Tomasha Village Lot(s) Number Owned

Date

I3117P 274

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

Kathryn Peters Kathryn Peters
Signature and Printed Name

215
Tomasha Village Lot(s) Number Owned

Date

Marcia S. Russell
Signature and Printed Name

270
Tomasha Village Lot(s) Number Owned

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

N/A
Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

IN WITNESS WHEREOF, the undersigned current owners of a majority of the lots in the said subdivision do hereby set their hands on the dates indicated opposite their signatures, intending to and hereby declaring the amending, changing, and modifying of the Declaration referenced above.

Linda G Kimbley
Signature and Printed Name
274
Tomasha Village Lot(s) Number Owned

Date 11-1-97
Aileen Bangert-Riley
Aileen Bangert-Riley
Signature and Printed Name
254

Tomasha Village Lot(s) Number Owned
11-1-97
Date

RODNEY L. HADER, President
Signature and Printed Name
213

Tomasha Village Lot(s) Number Owned
11-1-97
Date

Rodney L. Hader
Rodney L. Hader
Signature and Printed Name
195

Tomasha Village Lot(s) Number Owned
11-1-97
Date

JOE KUZNIAKOWSKI
Joe Kuzniakowski
Signature and Printed Name
272

Tomasha Village Lot(s) Number Owned
11-4-97
Date

Tim Kimbley
Signature and Printed Name
274

Tomasha Village Lot(s) Number Owned
11-1-97
Date

N.A.
Signature and Printed Name

Tomasha Village Lot(s) Number Owned
Date

MARION F. HANLEY
Signature and Printed Name
213

Tomasha Village Lot(s) Number Owned
11-1-97
Date

N/A
Signature and Printed Name
195

Tomasha Village Lot(s) Number Owned
Date

Beverly Kuzniakowski
Beverly Kuzniakowski
Signature and Printed Name
272

Tomasha Village Lot(s) Number Owned
11-4-97
Date

98- 1 18644

3.00
3.00
4.00
20.00
30.00

I3160P2031

**ADDENDUM TO
AMENDMENT**

DHicks

STATE OF MISSOURI
COUNTY OF JACKSON SS
I CERTIFY INSTRUMENT RECEIVED

1998 MAR 19 P 4: 23.0

I3160P2031

RECORDED BOOK PAGE
DIRECTOR OF RECORDS

**TO THE
DECLARATION OF RESTRICTIONS
OF TOMASHA VILLAGE RESURVEY**

LOTS 195 THRU 256

LOTS 269 THRU 276

(A REPLAT OF LOTS 195 THRU 254, AND LOTS 269 THRU 276)

This is an Addendum (herein "Addendum") to the Amendment to the Declaration of Restrictions of Tomasha Village (herein "Amendment") affecting that certain tract of real estate described as:

All of Lots 195 to 256, inclusive, and 269 to 276, inclusive, TOMASHA VILLAGE RESURVEY, a subdivision of land in the City of Independence, Jackson County, Missouri.

The Amendment was executed by a majority of the then owners of the aforesaid parcel of real estate and was thereafter recorded on December 29, 1997, as Document Number 97-I 81331 in Book I-3117 beginning at Page 240 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence, Missouri. The Amendment amended the terms of the Declaration of Restrictions of Tomasha Village (herein "Declaration") affecting the real estate described above, said Declaration being recorded November 3, 1967 as Document Number I-01778 in Book I-6 beginning at Page 1035 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence, Missouri.

This Addendum is prepared, executed, and filed to correct the inadvertent omission from the recorded Amendment, of certain notary pages wherein signatures of owners of real estate affected by the Amendment and who executed the Amendment, were notarized. Those signatures were notarized at the time of execution as noted on the Amendment, but the notary pages were inadvertently omitted from the Amendment which was recorded as described above.

The undersigned individually, as an agent of the Tomasha Village Homes Association, and for and on behalf of the owners of the real estate described above, had the responsibility of obtaining and compiling all of the signatures on the Amendment, as well as ensuring that all of those signatures were notarized (the undersigned did not have to notarize the signatures himself). The undersigned did obtain all of the necessary signatures, all duly notarized, for the completion and recording of the Amendment.

I3160P2032

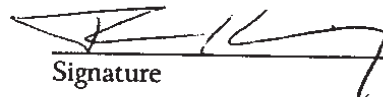
However, in the process of compiling the duly executed and notarized Amendment for recording with the Office of the Recorder of Deeds for Jackson County, Missouri at Independence, Missouri, the undersigned inadvertently misplaced certain of the notary pages, wherein the signatures of certain owners of real estate who had executed the Amendment, were notarized. Therefore, when the executed Amendment was recorded as set forth above, certain of the misplaced notary pages were omitted therefrom. The undersigned has located the misplaced notary pages and now desires and intends to record same as an Addendum to the Amendment. Attached hereto are the original, misplaced notary pages which pertain to the following described real estate:

<u>Name of Owners</u>	<u>Lot Number</u>	<u>Date of Execution</u>	<u>Name of Notary</u>
Rodney Hader	195	November 1, 1997	Denise Young
Bonnie & Marnon Hamby	213	November 1, 1997	Denise Young
Tim & Linda Kinsey	274	November 1, 1997	Denise Young
Alice M. Bangert-Riley	254	November 1, 1997	Denise Young

All of the signatures which were notarized and which are described in the attached notary pages, were duly executed on the dates noted therein. Those original signature pages were attached to and recorded with and as a part of the Amendment described above. No new signatures are included herewith.

In all other respects, Amendment and the Declaration as described above and as same exist as of this date, remain unchanged and unmodified.

IN WITNESS WHEREOF, the undersigned, individually, as an agent of the Tomasha Village Homes Association, and for and on behalf of the owners of the real estate described above does hereby set his hand on the date set forth hereinafter his signature.


Signature

Tim Kinsey
Print Name

3-7-98
Date

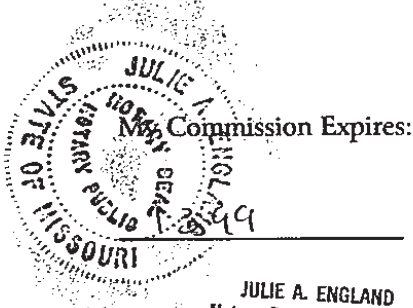
I3160P2033

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 7th day of March, 1998, before me, the undersigned, a Notary Public, personally appeared Tim Kimsey, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he has read the above and foregoing document, that he executed the same as his free act and deed, and that the statements contained in the above and foregoing document are true and correct, and that he executed same in the capacities set forth in the foregoing document.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Kansas City, Missouri, the day and year last above written.

Julie A. England
Notary Public



JULIE A. ENGLAND
Notary Public - Notary Seal
STATE OF MISSOURI
Jackson County
My Commission Expires Jan. 03, 1999

I3160P2034

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 1st day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared ROMNEY HAMER, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 6, 1998

Denise Young
Notary Public

195-256
269-276

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this _____ day of _____, 19____, before me, the undersigned, a Notary Public, personally appeared _____, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Notary Public

My Commission Expires:

I3160P2035

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 15th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared BONNIE & MARION HAMBY, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXPI. JULY 8, 1998

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this ____ day of _____, 19__, before me, the undersigned, a Notary Public, personally appeared _____, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

Denise Young
Notary Public

213

195-256
269-276

Notary Public

I3160P2036

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 1st day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Tim & Linda Kinsey, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 8, 1998

My Commission Expires:

Denise Young
Notary Public (274)
195-256
269-276

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 1st day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Alice M. Bancert-Riley, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 8, 1998

Denise Young
Notary Public (254)
195-256
269-276